

- RAG Learning

## 1.10 The European Union

Politics — AQA (7152) — Paper 1 (Government and Politics of the UK)

This section remains in the AQA specification (3.1.2.5) despite the UK's withdrawal, because EU membership shaped the UK constitution, party system and political culture for over four decades — and because Brexit's constitutional consequences are still unfolding.

### 1. Origins and aims

#### Why the EU was created

- **Preventing war** — the founding purpose after 1945 was to bind European states, particularly France and Germany, so closely that war between them became impractical. The European Coal and Steel Community (1951) pooled precisely the industries needed to wage war.
- **Economic integration** — a common market, later a single market with the **four freedoms**: free movement of goods, services, capital and people, plus a customs union with a common external tariff.
- **"Ever closer union"** — progressive deepening of integration, including monetary union and common policies on agriculture, fisheries, competition, the environment and regional development.

#### Key treaties

| Treaty                 | Effect                                  |
|------------------------|-----------------------------------------|
| Treaty of Rome<br>1957 | Created the European Economic Community |

|                          |                                                                                                                                                                             |
|--------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Single European Act 1986 | Established the single market programme; extended qualified majority voting                                                                                                 |
| Maastricht 1992          | Created the European Union; introduced EU citizenship, the euro project and the pillar structure. The point at which UK Euroscepticism became a serious parliamentary force |
| Lisbon 2007              | Strengthened the European Parliament; created the Article 50 withdrawal procedure                                                                                           |

## 2. Institutions

| Institution                      | Composition                                   | Role                                                                           |
|----------------------------------|-----------------------------------------------|--------------------------------------------------------------------------------|
| <b>European Commission</b>       | Appointed commissioners, one per member state | The executive: proposes legislation, enforces the treaties, manages the budget |
| <b>European Parliament</b>       | <b>Directly elected</b> MEPs                  | Scrutinises and, with the Council, approves legislation and the budget         |
| <b>Council of the EU</b>         | Ministers from member state governments       | Shares legislative power with the Parliament                                   |
| <b>European Council</b>          | Heads of government                           | Sets overall political direction                                               |
| <b>European Court of Justice</b> | Judges from each member state                 | Interprets EU law; ensures uniform application                                 |

**Exam Tip:** Do not confuse the **European Court of Justice** (an EU institution interpreting EU law — the UK left its jurisdiction) with the **European Court of Human Rights** (a Council of Europe body enforcing the ECHR — the UK remains subject to it, and Brexit did not change that). This is one of the most common errors on the paper.

### 3. The UK's relationship with the EU

| Year        | Event                                                                               |
|-------------|-------------------------------------------------------------------------------------|
| 1973        | UK joins the EEC                                                                    |
| 1975        | Referendum on continued membership — ~67% Yes                                       |
| 1991        | <i>Factortame</i> — UK courts disapply an Act of Parliament conflicting with EU law |
| 1992        | Maastricht; UK secures opt-outs from the euro and the Social Chapter                |
| 2016        | EU referendum — 52% Leave / 48% Remain, ~72% turnout                                |
| 2017        | <i>Miller I</i> — only Parliament could authorise triggering Article 50             |
| 2019        | <i>Miller II</i> — prorogation unlawful                                             |
| 31 Jan 2020 | UK formally leaves the EU                                                           |
| 31 Dec 2020 | End of the transition period                                                        |

#### Differentiated integration

The UK participated in the single market while declining deeper political and monetary union — opt-outs from the **euro** and from **Schengen**. This pattern of "awkward partner" membership is significant: the UK was in the economic project but never in the political one.

### 4. Sovereignty: the central constitutional question

#### The case that membership eroded sovereignty

- **Supremacy of EU law** — where EU and national law conflicted within an area of competence, EU law prevailed. Given effect domestically by the European Communities Act 1972.
- ***Factortame (1991)*** — UK courts disapplied part of the Merchant Shipping Act 1988. The first time a UK court had set aside primary legislation.

- **Transfer of competence** — trade, agriculture, fisheries, competition, much environmental and employment law passed to EU institutions, with the ECJ holding final interpretive authority.
- **Incremental deepening** — successive treaties extended integration far beyond the common market voters endorsed in 1975, without any further popular vote.

## The case that it did not

- Supremacy rested on an **ordinary Act of Parliament** which Parliament had itself passed — and, in 2018, repealed.
- Sovereignty was therefore **delegated, not surrendered**: the power to reclaim it was real, and was exercised.
- The UK retained a veto in significant areas and helped shape the rules it was bound by.

**Exam Tip:** The sharpest counter to the "delegated not surrendered" argument: **a sovereignty exercisable only by leaving the entire legal order is of limited practical value**. For forty-seven years UK courts disapplied Acts of Parliament, and the only available remedy was total withdrawal. Whether that counts as retaining sovereignty depends on whether you define it as a legal capacity or a practical political power — and saying so explicitly is the mark of a top-band answer.

## 5. Why membership became contentious

1. **Sovereignty** — the supremacy of EU law and ECJ jurisdiction sat uneasily with a constitution founded on parliamentary sovereignty.
2. **Free movement and immigration** — accession of central and eastern European states from 2004, without UK transitional controls, produced substantial migration on which membership meant no government could act. This *fused* the immigration question to the sovereignty question, and is probably the most electorally potent factor.
3. **The EU's democratic deficit** — key powers resting with the appointed Commission and the Council rather than the elected Parliament; low turnout in European elections.
4. **Party management** — Europe cut *across* rather than along party lines, splitting the Conservatives between single-market supporters and sovereignty-focused sceptics from

Maastricht onwards.

5. **Electoral pressure from UKIP** — proportional European elections gave UKIP a platform and bloc of MEPs that FPTP would have denied it.

## 6. Why the UK voted to leave

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- **Sovereignty and "take back control"** — fused a technical constitutional objection to an intuitive claim about who decides. The Remain campaign's economic arguments were poorly suited to answer it.
- **Immigration** — made the sovereignty argument concrete: a salient issue on which government was demonstrably unable to act.
- **Long-term economic and political discontent** — Leave support correlated with lower incomes, fewer qualifications, older age and post-industrial regions. The referendum offered a rare decisive vote against the status quo, which helps explain why warnings from the political establishment were discounted rather than persuasive.

## 7. Constitutional consequences of Brexit

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### Sovereignty restored — formally

The **European Union (Withdrawal) Act 2018** repealed the European Communities Act 1972, ending the supremacy of EU law and ECJ jurisdiction. To avoid legal gaps it converted existing EU law into **retained EU law**, which Parliament may now amend or repeal. UK courts can no longer disapply an Act of Parliament on EU law grounds.

### Strain on devolution

Returning competences in devolved fields — agriculture, fisheries, environmental standards — raised whether they should pass to the devolved bodies or be held centrally. Westminster legislated through the **UK Internal Market Act 2020** over the objections of both the Scottish Parliament and the Senedd, exposing the Sewel Convention's lack of legal force.

### The Northern Ireland Protocol

Sought to avoid a hard land border with Ireland by keeping Northern Ireland aligned with some EU single market rules — creating trade friction *within* the UK, which unionists strongly opposed and which contributed directly to the Assembly's suspension from 2022.

## Executive power and scrutiny

The withdrawal legislation took extensive **delegated powers** to amend retained EU law by statutory instrument, raising significant scrutiny concerns — a large body of law amendable with minimal parliamentary debate.

## Popular vs parliamentary sovereignty

The referendum was **legally advisory but politically binding**, creating a direct clash: a majority of voters chose to leave while a majority of MPs had favoured remaining. The constitution offers no mechanism for resolving that, and the result was years of deadlock, two landmark Supreme Court cases, a prorogation and an early general election.

## Key terms

| Term                | Definition                                                                        |
|---------------------|-----------------------------------------------------------------------------------|
| Four freedoms       | Free movement of goods, services, capital and people within the single market     |
| Supremacy of EU law | Where EU and national law conflicted, EU law prevailed within areas of competence |
| Subsidiarity        | Decisions should be taken at the lowest effective level of government             |
| Article 50          | The Lisbon Treaty procedure by which a member state withdraws                     |
| Democratic deficit  | Criticism that EU power rests with appointed rather than elected institutions     |
| Retained EU law     | EU law converted into domestic law by the 2018 Withdrawal Act                     |

|                            |                                                                              |
|----------------------------|------------------------------------------------------------------------------|
| Differentiated integration | Member states participating in some EU projects but not others (UK opt-outs) |
| Qualified majority voting  | Council decision-making not requiring unanimity, so a state can be outvoted  |

## Essential examples

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- **Factortame (1991)** — disapplication of an Act of Parliament.
- **Maastricht 1992** — UK opt-outs; the beginning of serious Conservative division.
- **2004 accession** — no UK transitional controls; migration becomes politically central.
- **2016 referendum** — 52/48 on ~72% turnout.
- **Miller I and II** — courts constraining executive power during the withdrawal process.
- **EU (Withdrawal) Act 2018** — ECA 1972 repealed; retained EU law created.
- **UK Internal Market Act 2020** — passed over withheld devolved consent.
- **Northern Ireland Protocol** — trade friction within the UK; Assembly suspension.